JOHN TRANOS MATUKUTIRE
versus
PORTIFA MWENDERA N.O. (Disciplinary Authority of the Pharmacists Council of Zimbabwe)
and
RICHARD TENDAI RUKWATA N.O. (Director Pharmacists Council of Zimbabwe)
and
PHARMACISTS COUNCIL OF ZIMBABWE

HIGH COURT OF ZIMBABWE
MUSITHU J
HARARE, 9 October 2025 and 11 June 2026

Opposed Application-Review of decision of Disciplinary Tribunal

N. Mugiya, for the applicant
R.T. Muzonzini, for the respondents

MUSITHU J:

1. This is an application for the review of the decision of the first respondent which found the applicant culpable of violating provisions of the Medicines and Allied Substances Control (General) Regulations 1991 Statutory Instrument 150 of 1991 (the regulations) in that the applicant had purchased medicine from an unlicensed source at his pharmacy at Machipisa Shopping Centre.

2. The application was motivated on the following grounds for review:

2.1 The respondents placed the applicant under double jeopardy when he was competently dealt with by another competent statutory body governed by the same law.

2.2 The respondents decided on a question of law when they dismissed the application for his exception.

2.3 The respondents exceeded their jurisdiction by deciding on a question of law.

2.4 The respondents did not abide by the rules of natural justice, particularly, the *audi alteram patem rule*, when they declined the cross examination of the inspectors.

2.5 The chairman of the disciplinary committee and the chairman of the third respondent were conflicted.

2.6 The applicant was unprocedurally brought before the committee without executive committee minutes.

3. The applicant prayed that if the application was successful, the decision of the first respondent must be set aside with a concomitant order of costs on the legal practitioner and client scale.

Background to the application and the Applicant's Case

4. The background to the application was as follows. The applicant operates a pharmacy called Forrestal Machipisa Pharmacy (the pharmacy). Sometime in October 2021, inspectors from the Medicines Control Authority of Zimbabwe (hereafter referred to as the MCAZ) came for routine inspection at the pharmacy and stumbled upon a document which showed that the applicant had purchased contiflo capsules from an unauthorised supplier. The applicant claimed that the document was fraudulent because it had not originated from him.

5. The acting director of the Medicines Control Authority, whom the applicant claimed was also the chairperson of the third respondent, wrote a warning letter to the applicant. The applicant claimed that the dual roles of the acting director was untenable.

6. The applicant did not appeal against the warning letter because it did not affect his licensing rights. He took that position regardless of the fact that the decision was arrived at without affording him an opportunity to be heard in violation of s 69 of the Constitution of Zimbabwe.

7. On 15 March 2022, the third respondent through its registrar, wrote to the applicant inviting him to comment on the warning letter issued by the Medicines Control Authority. The applicant claimed that the warning was issued to him by the Medicines Control Authority through the second respondent and the letter of 15 March 2022 was written by the same person who was now the chairperson of the third respondent, a situation which the applicant found to be grossly compromised. The applicant responded to the said letter on 17 March 2022 and gave his own side of the story.

8. On 10 May 2022, the registrar of the third respondent wrote to the applicant advising that the Executive Committee of the third respondent had referred him to a disciplinary hearing. In response to the communication, the applicant requested, through his letter of 16 May 2022, further and better particulars from the third respondent. The second and third respondents refused to furnish the requested particulars through their letter of 17 May 2022.

9. The applicant was arraigned before the Disciplinary Inquiry Committee (the Disciplinary Committee) for a hearing on 19 May 2022, notwithstanding his protestations. The charge

as recorded in the record of proceedings of the Disciplinary Committee of 19 May 2022, was that the applicant, being a registered pharmacist, allegedly conducted himself in a manner that was unethical or improper or disgraceful or conduct which when regard was had to his profession or calling was improper or disgraceful.

10. The allegations were that on or about 12 October 2021, the applicant as the pharmacist director for Matukutire T John trading as Forestal Machipisa Pharmacy failed or neglected to exercise sufficient control over the operations of Forestal Machipisa Pharmacy situated at Stand 4097 Machipisa Shopping Centre, Highfield, Harare in consequence of which the MCAZ issued him a written warning on 15 February 2022 for purchasing medicines from unauthorised sources contrary to the provisions of s 17(a) of the Medicines and Allied Substances Control [General] Regulations 1991, Statutory Instrument 150 of 1991, where an invoice of medicine, Contiflio x 4, 0.4 milligram, that had been purchased from an unlicenced source, Muti Medical Supplies, was found in the pharmacy's record.

11. The Disciplinary Committee found the applicant guilty of conduct which when regard was had to his profession, was considered disgraceful. The committee imposed a penalty of thirty thousand Zimbabwean dollars (ZW$30, 000.00), coupled with costs of the hearing, amounting to one hundred and eighty-eight thousand and sixty-eight dollars (ZW$188, 068.00). The amount was to be paid to the third respondent on or before 31 July 2022.

12. The applicant appealed against the decision of the Disciplinary Committee to the Appeals Committee on 29 July 2022 and the appeal was heard on 22 September 2022. On 18 October 2022, the Appeals Committee struck off the appeal from the roll on the basis that the applicant's grounds of appeal were grounds for review and therefore defective.

13. The striking off of the appeal culminated in the filing of the present application which the applicant claimed was premised on the following issues. The applicant claimed that he raised the point that the charge lacked essential elements for him to understand it, and instead of the prosecution responding to it, it was the first respondent who usurped the powers and functions of the prosecuting authority.

14. The applicant claimed that he was unlawfully placed before the disciplinary committee on 10 May 2022, yet the minutes of the meeting were approved on 22 June 2022. The minutes were deemed to apply retrospectively to acts that were taken on 10 May 2022. It

was clear that the first respondent was acting at the instance of the second respondent who is the appointing authority and had personalised the activities and functions of the third respondent.

15. The first respondent was accused of technically dismissing the applicant's preliminary issues in a case that he became an agent of the second respondent, a prosecutor and chairperson. The applicant averred that it was improper for the first respondent to use a warning of the Medicines Control Authority to commence a hearing against him when warning was a form of punishment on its own. The first to third respondents took the warning as a form of misconduct which was contrary to the Act which they were using.

16. The applicant also averred that the respondents erred when they exposed him to double jeopardy contrary to the Act which only permitted it in one instance, that is when a member had been convicted for criminal conduct in terms of the s 111 of the Health Professions Act.

17. It was also averred that the entire hearing and its outcome was a nullity in that the first respondent was acting on the instructions of the second respondent whose office had become *functus officio*, when he conducted the hearing on acts of misconduct which had been dealt with and concluded by another competent authority. It was improper for the second respondent to preside over the functions and powers of the Medicines Control Authority, as its Acting Director in which he proceeded to give a warning, as he was also the Chairperson of the Pharmacists Council of Zimbabwe.

18. It was further averred that the conduct of the second respondent of sitting in two offices to preside over an act of alleged misconduct was a violation of the Public Enterprises Corporate Governance Act where corporate powers should not be concentrated in an individual or a small group of individuals, as was the case herein.[1]

19. It was also alleged that the first respondent misdirected himself when he refused to avail minutes of the Medicine Control Authority when he issued the warning letter so that the applicant could appreciate the basis upon which it was issued. The respondents were also accused of grossly misdirecting themselves when they refused to furnish the applicant with the document in which it was alleged that the applicant purchased drugs from an unauthorised supplier.

20. The first respondent was also accused of having erred when he failed to furnish evidence to prove the cause of action in the present matter, which appeared to be the warning letter

[1] [*Chapter 10:33*]

which arose from the document relating to the purchase of drugs from an unauthorised supplier. The first respondent's decision was also criticised for being confusing as it was not clear on the basis upon which the conviction was arrived at.

The Respondents' Case

21. The first respondent's opposing affidavit was brief. He chaired the disciplinary committee whose decision was under review. He denied that the second respondent was ever involved in the hearing at any point. He also argued that the proceedings ought not to have been brought against him because the impugned decision was not his alone, but that of the committee of the third respondent which was a board corporate. He associated himself with the deposition and averments made in the third respondent's opposing affidavit.

22. The third respondent's opposing affidavit was deposed to by **Alois Karonga** in his capacity as its registrar and secretary. He also deposed on behalf of the second respondent. The deponent dismissed the applicant's averment that he was denied a copy of the invoice by the respondents and pointed to the applicant's own report to the MCAZ where he referred to the same document in paragraph 5 of his report. The applicant could not ask to be furnished with a document that was already in his possession.

23. The deponent further averred that the Acting Director General of the Medicines Control Authority (the second respondent herein) was appointed to the Pharmacists Council of Zimbabwe in terms of the Health Professions Act.[2] He was elected chairperson by the members, and there was nothing grossly untenable about his appointment as it complied fully with the statutory requirements. The second respondent played no role in the disciplinary proceedings conducted by the third respondent against the applicant.

24. It was also denied that the applicant was not afforded an opportunity to be heard prior to the issuance of the warning. Correspondence attached to the applicant's founding affidavit showed that there was communication between the Medicines Control Authority of Zimbabwe and the applicant before the warning was issued. The applicant was therefore given an opportunity to be heard. The applicant did not contest the decision of the Medicines Control Authority.

25. As for the delay in furnishing the minutes, the deponent stated that the executive committee convened on 28 April 2022, with its next meeting scheduled for 28 July 2022. He initially declined to provide the minutes and provided an extract. He provided the

[2] [*Chapter 27:19*]

signed minutes on 22 June 2022 following a directive from the disciplinary committee. The minutes were confirmed at the next meeting of the committee and this explained the delay in having them signed. The deponent argued that he was under no obligation to provide the applicant with the minutes. In any event, as the registrar, he was not required to wait for the confirmation of the minutes before implementing the executive committee's resolutions.

26. According to the deponent, the charge was explained to the applicant fully after which he entered a plea of not guilty. The prosecutor also clarified the charge to the applicant, and the chairperson ensured that the applicant understood it before the proceedings begun. The first respondent never assumed the role of the prosecutor. The deponent denied the claim that the decision to refer the applicant to the disciplinary committee was made retrospectively. The minutes of the meeting were only confirmed at the subsequent meeting of the committee.

27. The deponent dismissed the applicant's claim that the second respondent personalised the activities and the functions of the third respondent. The second respondent appointed the first respondent to chair the disciplinary committee because the charge stemmed from an inspection and subsequent warning issued by the MCAZ. The second respondent was not involved in the disciplinary inquiry. The deponent denied that the first respondent acted as an agent of the second respondent in dismissing the applicant's preliminary issues. The disciplinary committee's role was to hear and adjudicate on a matter before it.

28. The deponent also averred that the third respondent acted within its authority by charging the applicant under the Health Professions Act. The applicant's conduct warranted a warning as it reflected behaviour that brought the name of the profession into disrepute. The issuing of the warning did not impact on the jurisdiction of the third respondent. The deponent dismissed the allegations of double jeopardy insisting that the third respondent acted in accordance with the Health Professions Act. Although no criminal conviction existed against the applicant, such conviction would have justified the initiation of disciplinary proceedings against him.

29. The deponent denied that the second respondent was involved in the matter in any capacity. He was not a member of the executive committee that referred the matter to the disciplinary committee, nor was he a party of the disciplinary committee itself. The letter from the MCAZ of 15 February 2022 attached to the court application showed that the

second respondent was simply communicating the decision of the Licensing and Advertising Committee. There was no evidence suggesting that he had participated in the proceedings that birthed the present application.

30. It was further averred that the MCAZ was not a party to these proceedings and the third respondent had no control over its processes. The minutes from the Medicines Control Authority could only be provided by that authority. At any rate, the applicant had not challenged the decision of the Medicines Control Authority which remained extant.

31. In response to the relief sought by the applicant, it was averred that the only decision standing and whose review was sought was that of the disciplinary committee of the third respondent. No decisions were made by the first and second respondents.

The Submissions

32. Mr *Mugiya* for the applicant submitted that the review sought was against the decision of the disciplinary committee. The disciplinary process was clumsily done. He motivated the grounds for review as follows. On the first ground for review, he submitted that the applicant was sanctioned twice by two authorities of competent jurisdiction using the same legislation. According to counsel, the applicant was convicted and punished by the Medicines Control Authority of Zimbabwe after he was issued with a warning letter.

33. Based on that outcome, the third respondent decided to penalise the applicant for the same misconduct. It was not disputed that the MCAZ was a competent authority. Counsel submitted that the only instance that a double jeopardy scenario was permitted was when a member was convicted by a criminal court, and not a conviction by the MCAZ.

34. As regards the second ground for review, Mr *Mugiya* submitted that the applicant raised an issue regarding the competency of the charge. No evidence was led to sustain the charge and the prosecutor did nothing save to respond to the defence outline. It was further submitted that the applicant insisted on the invoice that gave rise to the charge, but all that the respondents said was that the applicant had already been issued with a warning. The third ground for review was incorporated in the second ground because the two grounds raised the same issues.

35. Concerning the fourth ground, Mr *Mugiya* submitted that nothing in the record showed that the applicant was heard. It was difficult to follow how the applicant was found guilty. The record did not show how the applicant responded to what the accusers said to

him. The evidence of receiving drugs from an unauthorised supplier could not be used against him.

36. The fifth ground was concerned with the decision and position of the second respondent. The second respondent was a director of the MCAZ and as well as being a director of the third respondent. When the applicant was found guilty by the MCAZ, the second respondent was also the director, and he chose his proxies in the third respondent. The second respondent ended up controlling everything in violation of the Public Entities and Corporate Governance Act[3].

37. As regards the sixth ground for review, it was submitted that the executive committee minutes were not furnished when requested. At the first hearing, the respondents conceded to the anomaly and the matter was postponed and the applicant was forced to give a defence outline without the benefit of the minutes.

38. In her response, Miss *Muzonzini* submitted that the third respondent was established in terms of s 45 of the Health Professions Act[4]. Its mandate was to regulate the ethical conduct of pharmacists. The MCAZ had its own processes distinct from those of the third respondent. The MCAZ forwarded its findings to the appropriate regulatory body. The proceedings before the MCAZ were sanctioned by law. Its primary concern was the sale of unregulated products. The third respondent on the other hand was concerned with the applicant's conduct of being found guilty of the offence of selling unregulated goods. The impugned conduct was that of the applicant and not the pharmacy.

39. Miss *Muzonzini* further submitted that double jeopardy did not arise because the proceedings before the two authorities were separate. The first proceedings were concerned with what was found in the pharmacy. The second proceedings were concerned with the conduct of the applicant as a member of the third respondent. Counsel also submitted that the registrar was within his rights to decline to supply the applicant with the minutes of the executive committee. The minutes were subsequently furnished as confirmed by the letter of 17 May 2022 from the registrar to the applicant. The minutes in contention were those of the second meeting of 28 April 2022.

40. Counsel dismissed the allegations of conflict of interest levelled against the second respondent, arguing that he was not involved in the proceedings at all. The council had

[3] [*Chapter 10:33*]
[4] [*Chapter 27:19*]

fourteen members, and the committee that presided over the matter was not chaired by the second respondent.

The analysis

41. The applicant's complaint must be understood in the context of the events that preceded the proceedings that are the subject of the application for review before the court, as well as the applicable law. It is common cause that on 12 October 2021, officials from the MCAZ visited the applicant's pharmacy at Machipisa. The officials found a document that showed that the pharmacy purchased drugs from an unauthorised supplier. An inspection report was prepared, and the applicant was invited to respond to that report. The matter was placed before the Licensing and Advertising Committee of the MCAZ which considered the applicant's submissions. The committee resolved to issue the applicant with a warning.

42. The committee's decision was made having regard to s 17A of the Medicines and Allied Substances Control (General) Regulations, 1991, S.I. 150 of 1991, which prohibited the purchasing of medicines from unauthorised sources. Regard was also had to s 106 of the same regulations which provided for penalties for any breaches of the said regulations. The letter of 15 February 2022, from the MCAZ to the applicant concluded by alerting the applicants to his rights to appeal against its decision to the Administrative Court in terms of s 62 of the Medicines and Allied Substances Control Act[5], if he was aggrieved by the outcome.

43. On 15 March 2022, the third respondent, through its registrar, wrote to the applicant inviting him to submit written comments on the warning letter issued to him by the MCAZ. The MCAZ is a statutory body created under the Medicines and Allied Substances Control Act. It has as its mandate the protection of human and animal health by ensuring that the medicines dispensed to the public and animals are safe and of good quality. The third respondent on the other hand is established in terms of the Health Professions Act.

44. Section 17A of the regulations made under the Medicines and Allied Substances Control Act proscribes the purchasing or receiving of medicines from an unauthorised person or source. Section 106 of the regulations provides that any person who contravenes the provisions of the regulations shall be guilty of an offence and liable to a fine not

[5] [*Chapter 15:03*]

exceeding level seven or to imprisonment for a period not exceeding six months or to both such fine and such imprisonment.

45. The preamble to the Medicines and Allied Substances Control Act states that the Act seeks to establish the MCAZ and to confer functions on such Authority in relation to the registration of medicines, as well as to provide for certain prohibitions, controls and restrictions relating to medicines and other substances. The preamble to the Health Professions Act describes it as an Act among other things to provide for the registration of persons in health professions and the issue of practising certificates to registered persons and to provide for the exercise of disciplinary powers in relation to registered persons.

46. The two pieces of legislation are therefore intended to provide a legal framework for the regulation of members of the medical profession albeit for different purposes and under different jurisdictions. The Medicines and Allied Substances Control Act is concerned with the regulation of medicines and other substances which are dispensed by service providers such as pharmacies. The Health Professions Act on the other hand is concerned with the regulation of the conduct of members of the health profession registered in terms of that law.

47. Both pieces of legislation also contain offence creating provisions with attendant penalties in the event of a breach. A person aggrieved by the decision of a disciplinary authority under the two legal instruments has the right to appeal or seek further recourse against the decision of the disciplinary committee before different appellate platforms. The role of third respondent and that of the MCAZ are therefore distinct by reason of the very legal instruments that establish them. As correctly observed by the respondents' counsel, this distinction between the MCAZ and the third respondent is vital. While both entities addressed the applicant's actions, they did so from different perspectives.

48. This conclusion therefore disposes of the applicant's first ground for review that he was exposed to double jeopardy. It is the court's view that although both proceedings arose from the same factual conduct, they served different statutory purposes. The MCAZ was concerned with regulatory compliance. The third respondent was concerned with the professional consequences of the applicant's conduct and whether that conduct amounted to improper or disgraceful conduct within the meaning of the Health Professions Act.

49. Members of the applicant's profession find themselves in a somewhat peculiar situation where their conduct is the subject of scrutiny under two different legal frameworks

whose objectives do not converge. There is no merit in the ground for review, and it stands to be dismissed.

50. The second ground for review was that the respondents decided on a question of law when they dismissed the application for exception. It is not clear what the applicant meant by this ground for review. In his submissions, Mr *Mugiya* argued that the applicant raised an issue regarding the competency of the charge. No evidence was led to sustain the charge and the prosecutor did nothing save to respond to the defence outline. It was further submitted that the applicant insisted on being furnished with the invoice that gave rise to the charge, but all that the respondents said was that the applicant had already been issued with a warning.

51. The record of proceedings however tells a different story. The basis of the charge was explained to the applicant. The documents that he claimed were not furnished to him had been availed at the time of the hearing. The exception that was allegedly dismissed or the grounds for such dismissal was not clearly explained. No attempt was made to relate to the issue in the applicant's heads of argument. In the absence of specific averments that the court is invited to relate to, the court determines that there is no merit in the ground for review and it is accordingly dismissed.

52. The third ground for review was incorporated in the second ground by the applicant's counsel in his oral submissions. In view of the finding already made in the second ground for review, the court also dismisses the third ground for review for lack of merit.

53. The fourth ground for review was that the respondents did not abide by the rules of natural justice, particularly, the *audi alteram patem rule*, when they declined the cross examination of the inspectors. It was further averred that the applicant's rights were infringed because he was prevented from exercising his rights to be heard since the inspectors were not examined.

54. The record of proceedings showed that the applicant was informed of the allegations against him and was invited to respond to the findings made by the MCAZ, and the warning administered by the said body. In my view, the applicant's complaint is therefore not that he was denied a hearing altogether but that he was denied the opportunity to cross-examine the inspectors whose findings culminated in the MCAZ warning.

55. It must be recalled that the applicant did not challenge the decision of the MCAZ by way of an appeal or review. The factual findings made by the MCAZ and the warning

subsequently issued were therefore uncontested. The proceedings before the third respondent were distinct from those before the MCAZ.

56. The proceedings were initiated on the backdrop of a decision made by the MCAZ whose findings were not contested. Under the circumstances, the third respondent was not obliged to invite the inspectors whose findings led to the warning issued by the MCAZ since those findings were not challenged.

57. Further, the applicant has failed to demonstrate prejudice. He has not identified any material factual dispute which could only have been resolved through the oral evidence of the inspectors, nor has he shown that the outcome would probably have been different had the inspectors testified. This ground of review accordingly fails.

58. The fifth ground for review was that the chairman of the disciplinary committee and the chairman of the third respondent were conflicted. In his submissions, counsel for the applicant argued that the second respondent was a director of the MCAZ and a director of the third respondent. When the applicant was found guilty by the MCAZ, he was also the director, and he chose his proxies in the third respondent.

59. The record reveals that the chairperson of the third respondent did not participate in the disciplinary hearing. The proceedings were chaired by the first respondent. The alleged bias by any member of the committee was not demonstrated, therefore cannot constitute a basis for interfering with the proceedings on review. Nothing in the record of proceedings suggested that any member of the committee was conflicted. Without any further evidence to demonstrate otherwise, the court finds no substance in the allegation of bias or conflict of interest against any member of the committee. The ground for review is accordingly dismissed for lack of merit.

60. The sixth ground was that the applicant was unprocedurally brought before the committee without executive committee minutes. This ground for review is also devoid of merit. The record of proceedings revealed that the issue was raised by the applicant and that the matter was postponed. The minutes were subsequently furnished before the reconvened hearing. The minutes had initially been declined in line with s 72(3) of the Health Practitioners Act, which seeks to restrain the perusal of the minutes of the executive committee. The applicant did not point to any prejudice that he suffered following the production of those minutes belatedly. The confirmation of minutes at a subsequent meeting merely records and authenticates decisions already taken. It does not create those decisions retrospectively. The proceedings were subsequently conducted in

earnest after the minutes were furnished. The applicant's complaint in this regard is therefore misconceived

Costs of suit

61. The general rule is that costs follow the event. The court finds no reason to depart from this general principle by awarding costs to the respondent as the successful party. The application was ill conceived, not to mention the haphazard way the cause of action was pleaded and presented before the court.

Resultantly it is ordered that:

1. The application is hereby dismissed for lack of merit.
2. The applicant shall bear the respondent's costs of suit on the ordinary scale.

MUSITHU J: ……

Mugiya Law Chambers, applicant's legal practitioners
Honey & Blanckenberg, respondents' legal practitioners